



Bill Number: S.C.R. 1047

Payne Floor Amendment

Reference to: printed concurrent resolution

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes the establishment of the Attorney General Marijuana Enforcement Fund and all related requirements and authorizations.
2. Removes the following authorizations and requirements prescribed to provide oversight over marijuana establishments licensed under the Social Equity Ownership Program:
 - a) to appoint receivers to oversee establishments that participate in fraudulent or predatory activities and take outlined actions to remedy violations and restore licensure;
 - b) to petition the Attorney General (AG) to restore a license if prescribed conditions for receivership apply;
 - c) the restoration of a marijuana establishment license after the AG determines that one or more conditions have been met and that the proposed transferee meets all applicable requirements
 - d) to file a complaint with the AG for original establishment owners who are the subject of a predatory agreement or other outlined conditions
 - e) for a person who has been the subject of a predatory agreement to bring a private action if the predatory agreement constitutes fraud against the State of Arizona
 - f) for the Department of Health Services (DHS) to take action against a party to a predatory agreement at marijuana establishment license or facility agent card renewal as directed by the AG.
3. Removes from the allowed enforcement actions the AG may take in consultation with DHS:
 - a) the revocation of any marijuana establishment when held only by the violating party;
 - b) the permanent disqualification from holding any marijuana establishment license or marijuana facility agent card in the state; and
 - c) the appointment of a receiver.
4. Removes the authorization to hold an elected or appointed official of the state or any political subdivision of the state who knowingly votes for, approves or directs public monies to provide benefits, services or payments to individuals who are not U.S. citizens or lawful permanent residents personally liable for the total amount of public monies allocated and reasonable attorney fees and costs.
5. Removes the prohibition on the state or a political subdivision of the state from paying or reimbursing any judgment, settlement or legal fees incurred by a liable official.
6. Removes the prohibition on a person from committing the following fraudulent acts:
 - a) knowingly presenting a false or fraudulent claim for payment or approval;

- b) knowingly making, using or causing an individual to make or use a false record or material statement;
 - c) having possession, custody or control of property or money used by the state and knowingly delivering less than all of the property or money;
 - d) knowingly making or using a false record or statement that is material to an obligation to pay or transmit money or property to the state or knowingly concealing, improperly avoiding or decreasing an obligation to pay or transmit money or property to the state;
 - e) knowingly obtaining a license, permit, certificate, registration or other authorization from any state agency or political subdivision of the state by fraud;
 - f) knowingly operating any activity or enterprise while authorization is obtained or maintained by fraud; and
 - g) knowingly benefiting from the fraud of another in connection with any programs or benefits offered by the state.
7. Removes the following penalties for a person who commits an outlined fraudulent activity:
- a) a civil penalty of at least \$11,000 and not more than \$25,000 for each violation;
 - b) triple the amount of damages sustained by the state; and
 - c) the costs of any civil action, including reasonable attorney fees and investigative costs.
8. Removes defined terms.
9. Makes conforming changes.

PAYNE FLOOR AMENDMENT
SENATE AMENDMENTS TO S.C.R. 1047
(Reference to printed concurrent resolution)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The resolution as proposed to be amended is reprinted as follows:

2 1. Under the power of the referendum, as vested in the Legislature,
3 the following measure, relating to marijuana, is enacted to become valid
4 as a law if approved by the voters and on proclamation of the Governor:

5 AN ACT

6 AMENDING TITLE 36, CHAPTER 28.2, ARIZONA REVISED STATUTES, BY
7 ADDING SECTION 36-2869; RELATING TO MARIJUANA.

8 Be it enacted by the Legislature of the State of Arizona:

9 Section 1. Title 36, chapter 28.2, Arizona Revised
10 Statutes, is amended by adding [sections 36-2868 and]
11 [section] 36-2869, to read:

12 ~~[36-2868. Attorney general marijuana enforcement fund~~

13 ~~A. THE ATTORNEY GENERAL MARIJUANA ENFORCEMENT FUND IS~~
14 ~~ESTABLISHED CONSISTING OF THE MONIES TRANSFERRED TO THE~~
15 ~~ATTORNEY GENERAL PURSUANT TO SECTION 36-2856 AND INTEREST~~
16 ~~EARNED ON THOSE MONIES. MONIES IN THE FUND ARE CONTINUOUSLY~~
17 ~~APPROPRIATED AND ARE EXEMPT FROM THE PROVISIONS OF SECTION~~
18 ~~35-190 RELATING TO LAPSING OF APPROPRIATIONS. MONIES IN THE~~
19 ~~ATTORNEY GENERAL MARIJUANA ENFORCEMENT FUND MAY NOT BE~~
20 ~~TRANSFERRED TO ANY OTHER FUND EXCEPT AS PROVIDED IN THIS~~
21 ~~SECTION. THE ATTORNEY GENERAL SHALL ADMINISTER THE FUND.~~

22 ~~B. MONIES IN THE FUND MUST FIRST BE USED TO PAY THE~~
23 ~~REASONABLE COSTS INCURRED BY THE ATTORNEY GENERAL TO~~
24 ~~ADMINISTER THE FUND.~~

25 ~~C. AFTER THE PAYMENTS REQUIRED BY SUBSECTION B OF THIS~~
26 ~~SECTION, THE ATTORNEY GENERAL SHALL USE ALL REMAINING MONIES~~
27 ~~IN THE FUND TO ENFORCE LAWS RELATING TO MARIJUANA AND FOR SUCH~~
28 ~~OTHER PURPOSES AS THE ATTORNEY GENERAL DETERMINES ARE~~
29 ~~APPROPRIATE, INCLUDING:~~

1 ~~1. INVESTIGATING AND PROSECUTING FRAUD IN CONNECTION~~
2 ~~WITH MARIJUANA ESTABLISHMENT LICENSES.~~

3 ~~2. ENFORCING THIS CHAPTER RELATING TO THE SOCIAL EQUITY~~
4 ~~OWNERSHIP PROGRAM.~~

5 ~~3. SUPPORTING REENTRY PROGRAMS FOR INDIVIDUALS WITH~~
6 ~~PRIOR MARIJUANA-RELATED CONVICTIONS.~~

7 ~~4. PROVIDING GRANTS TO COMMUNITIES THAT WERE~~
8 ~~DISPROPORTIONATELY IMPACTED BY MARIJUANA ENFORCEMENT BEFORE~~
9 ~~THE ENACTMENT OF THIS CHAPTER.~~

10 ~~5. ADMINISTERING RECEIVERSHIP PROCEEDINGS PURSUANT TO~~
11 ~~SECTION 36-2869.~~

12 ~~D. THE ATTORNEY GENERAL MAY PRESCRIBE ANY FORMS OR~~
13 ~~PROCEDURES NECESSARY TO ADMINISTER THE FUND AND MAKE~~
14 ~~EXPENDITURES PURSUANT TO THIS SECTION.]~~

15 36-2869. Attorney general; investigation; legal action;
16 definition

17 ~~[A. THE ATTORNEY GENERAL MAY APPOINT A RECEIVER TO~~
18 ~~OVERSEE ANY MARIJUANA ESTABLISHMENT LICENSE ISSUED UNDER THE~~
19 ~~SOCIAL EQUITY OWNERSHIP PROGRAM ESTABLISHED PURSUANT TO~~
20 ~~SECTION 36-2854, SUBSECTION A, PARAGRAPH 9 IF THE ATTORNEY~~
21 ~~GENERAL DETERMINES THAT ANY OF THE FOLLOWING CONDITIONS~~
22 ~~EXISTS:~~

23 ~~1. THE ORIGINAL PRINCIPAL OFFICER OR BOARD MEMBER WHO~~
24 ~~HELD AT LEAST FIFTY-ONE PERCENT OWNERSHIP IN THE MARIJUANA~~
25 ~~ESTABLISHMENT HAS BEEN SUBJECT TO A PREDATORY AGREEMENT.~~

26 ~~2. FRAUD WAS COMMITTED IN CONNECTION WITH THE~~
27 ~~APPLICATION FOR THE MARIJUANA ESTABLISHMENT LICENSE OR~~
28 ~~OPERATION OF THE MARIJUANA ESTABLISHMENT.~~

29 ~~3. A PRINCIPAL OFFICER OR BOARD MEMBER WHO HELD A~~
30 ~~MINORITY INTEREST IN THE MARIJUANA ESTABLISHMENT VIOLATED ANY~~
31 ~~RULES ADOPTED PURSUANT TO THIS CHAPTER.~~

32 ~~4. A PRINCIPAL OFFICER OR BOARD MEMBER OF THE MARIJUANA~~
33 ~~ESTABLISHMENT FAILED TO DISCLOSE AN EXCLUDED FELONY OFFENSE AT~~
34 ~~THE TIME OF APPLICATION.~~

35 ~~5. THE MARIJUANA ESTABLISHMENT LICENSE IS NOT BEING~~
36 ~~OPERATED IN COMPLIANCE WITH THE INTENT OF THE SOCIAL EQUITY~~
37 ~~OWNERSHIP PROGRAM.~~

38 ~~B. A RECEIVER WHO IS APPOINTED PURSUANT TO SUBSECTION A~~
39 ~~OF THIS SECTION MUST MEET BOTH OF THE FOLLOWING~~
40 ~~QUALIFICATIONS:~~

41 ~~1. DEMONSTRATE COMPETENCE IN MARIJUANA ESTABLISHMENT~~
42 ~~MANAGEMENT THROUGH AT LEAST ONE OF THE FOLLOWING:~~

43 ~~(a) A MINIMUM OF TEN YEARS OF EXPERIENCE AS A PRINCIPAL~~
44 ~~OFFICER, BOARD MEMBER OR SENIOR MANAGER OF A MARIJUANA~~
45 ~~ESTABLISHMENT IN THIS STATE OR ANOTHER STATE WITH A REGULATED~~
46 ~~MARIJUANA PROGRAM.~~

1 ~~(b) COMPLETION OF A MARIJUANA BUSINESS MANAGEMENT~~
2 ~~CERTIFICATION PROGRAM APPROVED BY THE DEPARTMENT COMBINED WITH~~
3 ~~A MINIMUM OF TEN YEARS OF GENERAL BUSINESS MANAGEMENT~~
4 ~~EXPERIENCE.~~

5 ~~(c) A COMBINATION OF RELEVANT CANNABIS INDUSTRY AND~~
6 ~~BUSINESS MANAGEMENT EXPERIENCE TOTALING AT LEAST TEN YEARS, AS~~
7 ~~DEEMED SUFFICIENT BY THE ATTORNEY GENERAL.~~

8 ~~2. BE A BONA FIDE RESIDENT OF THIS STATE FOR A MINIMUM~~
9 ~~OF TEN CONSECUTIVE YEARS IMMEDIATELY PRECEDING THE~~
10 ~~APPOINTMENT, AS DEMONSTRATED BY TAX RETURNS, VOTER~~
11 ~~REGISTRATION, DRIVER LICENSE RECORDS, PROPERTY OWNERSHIP~~
12 ~~RECORDS OR OTHER DOCUMENTATION ACCEPTABLE TO THE ATTORNEY~~
13 ~~GENERAL.~~

14 ~~C. THE RECEIVER SHALL:~~

15 ~~1. TAKE POSSESSION AND CONTROL OF THE MARIJUANA~~
16 ~~ESTABLISHMENT LICENSE AND ALL ASSOCIATED ASSETS, INVENTORY AND~~
17 ~~OPERATIONS.~~

18 ~~2. OPERATE THE MARIJUANA ESTABLISHMENT IN COMPLIANCE~~
19 ~~WITH ALL APPLICABLE LAWS AND RULES.~~

20 ~~3. PRESERVE THE VALUE OF THE MARIJUANA ESTABLISHMENT~~
21 ~~LICENSE AND BUSINESS OPERATIONS FOR THE BENEFIT OF THE~~
22 ~~ORIGINAL SOCIAL EQUITY OWNERSHIP PROGRAM APPLICANT OR~~
23 ~~QUALIFIED RESIDENT OF THIS STATE.~~

24 ~~4. PROVIDE QUARTERLY REPORTS TO THE ATTORNEY GENERAL ON~~
25 ~~THE STATUS OF THE MARIJUANA ESTABLISHMENT OPERATIONS AND~~
26 ~~FINANCIAL CONDITION.~~

27 ~~5. FACILITATE THE RESTORATION OF THE MARIJUANA~~
28 ~~ESTABLISHMENT LICENSE TO A QUALIFIED INDIVIDUAL OR ENTITY AS~~
29 ~~DIRECTED BY THE ATTORNEY GENERAL.~~

30 ~~D. THE ORIGINAL PRINCIPAL OFFICER OR BOARD MEMBER WITH~~
31 ~~AT LEAST FIFTY-ONE PERCENT OWNERSHIP OF ANY ENTITY THAT~~
32 ~~RECEIVED A MARIJUANA ESTABLISHMENT LICENSE UNDER THE SOCIAL~~
33 ~~EQUITY OWNERSHIP PROGRAM ON APRIL 8, 2022 MAY PETITION THE~~
34 ~~ATTORNEY GENERAL TO RESTORE THE MARIJUANA ESTABLISHMENT~~
35 ~~LICENSE TO ANY ENTITY OF THE OFFICER'S OR BOARD MEMBER'S~~
36 ~~CHOICE IF ANY OF THE CONDITIONS PRESCRIBED IN SUBSECTION A OF~~
37 ~~THIS SECTION APPLIES.~~

38 ~~E. THE RESTORATION OF THE MARIJUANA ESTABLISHMENT~~
39 ~~LICENSE PURSUANT TO SUBSECTION D OF THIS SECTION IS SUBJECT TO~~
40 ~~THE ATTORNEY GENERAL'S APPROVAL FOLLOWING A DETERMINATION THAT~~
41 ~~ONE OR MORE OF THE CONDITIONS PRESCRIBED IN SUBSECTION A OF~~
42 ~~THIS SECTION HAVE BEEN MET AND THAT THE PROPOSED TRANSFeree~~
43 ~~MEETS ALL APPLICABLE REQUIREMENTS.~~

44 ~~F. THE ORIGINAL PRINCIPAL OFFICER OR BOARD MEMBER WHO~~
45 ~~HELD AT LEAST FIFTY-ONE PERCENT OWNERSHIP IN THE MARIJUANA~~
46 ~~ESTABLISHMENT AND WHO BELIEVES THE ORIGINAL PRINCIPAL OFFICER~~
47 ~~OR BOARD MEMBER WAS THE SUBJECT OF A PREDATORY AGREEMENT OR~~

1 ~~THAT SUBSECTION A OF THIS SECTION OTHERWISE APPLIES MAY FILE A~~
2 ~~COMPLAINT WITH THE ATTORNEY GENERAL. THE ATTORNEY GENERAL~~
3 ~~SHALL INVESTIGATE AND DETERMINE WHETHER THE AGREEMENT IS A~~
4 ~~PREDATORY AGREEMENT OR WHETHER ANY OTHER CONDITION PRESCRIBED~~
5 ~~IN SUBSECTION A OF THIS SECTION APPLIES.]~~

6 [G.] [A.] THE ATTORNEY GENERAL, IN [CONJUNCTION]
7 [CONSULTATION] WITH THE DEPARTMENT, MAY [TAKE APPROPRIATE
8 ENFORCEMENT] [INVESTIGATE AND COMMENCE LEGAL] ACTION AGAINST
9 ANY MARIJUANA FACILITY AGENT THAT [ENTERED] [ENTERS] INTO A
10 PREDATORY AGREEMENT OR [COMMITTED FRAUD TO TAKE CONTROL OF]
11 [FRAUDULENTLY ACQUIRES] A MARIJUANA ESTABLISHMENT LICENSE.
12 ENFORCEMENT ACTIONS [UNDER THIS SUBSECTION] [PURSUANT TO THIS
13 SECTION] MAY INCLUDE:

14 [1. APPOINTMENT OF A RECEIVER AS PROVIDED IN SUBSECTION
15 A OF THIS SECTION.]

16 [2.] [1.] REVOCATION OF ANY MARIJUANA ESTABLISHMENT
17 LICENSE [HELD BY THE VIOLATING PARTY].

18 [3.] [2.] DENIAL OR REVOCATION OF A MARIJUANA FACILITY
19 AGENT'S CARD.

20 [4. PERMANENT DISQUALIFICATION FROM HOLDING ANY
21 MARIJUANA ESTABLISHMENT LICENSE OR MARIJUANA FACILITY AGENT
22 CARD IN THIS STATE.]

23 H. THE DEPARTMENT SHALL TAKE ACTION AGAINST A PARTY TO
24 A PREDATORY AGREEMENT AT MARIJUANA ESTABLISHMENT LICENSE
25 RENEWAL OR MARIJUANA FACILITY AGENT CARD RENEWAL AS DIRECTED
26 BY THE ATTORNEY GENERAL.

27 I. A PERSON WHO HAS BEEN THE SUBJECT OF A PREDATORY
28 AGREEMENT MAY ALSO BRING A PRIVATE ACTION IF THE PREDATORY
29 AGREEMENT CONSTITUTES FRAUD AGAINST THIS STATE.]

30 [J.] [B.] FOR THE PURPOSES OF THIS SECTION [1.] [1.]

31 [1. "MINIMUM FAIR MARKET VALUE" MEANS THE GREATER OF:

32 (a) THE TOTAL ANNUAL RECREATIONAL MARIJUANA REVENUE IN
33 TAX YEAR 2025 FOR ALL MARIJUANA ESTABLISHMENT LICENSES,
34 DIVIDED BY THE TOTAL NUMBER OF ALL MARIJUANA ESTABLISHMENT
35 LICENSES, INCLUDING THOSE HELD BY DUAL LICENSEES.

36 (b) THE FAIR MARKET VALUE AS DETERMINED BY AN
37 INDEPENDENT APPRAISER LICENSED IN THIS STATE.]

38 2.] "PREDATORY AGREEMENT" MEANS ANY AGREEMENT SIGNED
39 BEFORE OR WITHIN EIGHTEEN MONTHS AFTER A MARIJUANA
40 ESTABLISHMENT LICENSE UNDER THE SOCIAL EQUITY OWNERSHIP
41 PROGRAM WAS ISSUED THAT REQUIRED THE ORIGINAL PRINCIPAL
42 OFFICER OR BOARD MEMBER WHO HELD AT LEAST FIFTY-ONE PERCENT
43 OWNERSHIP OF THE MARIJUANA ESTABLISHMENT TO SELL, TRANSFER,
44 ASSIGN, PLEDGE, ENCUMBER OR OTHERWISE GIVE CONTROL OF THE
45 ORIGINAL PRINCIPAL OFFICER'S OR BOARD MEMBER'S OWNERSHIP
46 INTEREST, VOTING RIGHTS OR OPERATIONAL CONTROL FOR LESS THAN

1 MINIMUM FAIR MARKET VALUE OR UNDER TERMS THAT A REASONABLE
2 PERSON WOULD CONSIDER UNCONSCIONABLE.

3 <<Sec. 2. Title 38, chapter 3, article 4, Arizona
4 Revised Statutes, is amended by adding section 38-452, to
5 read:

6 38-452. Elected officials; public monies; liability;
7 definition

8 A. NOTWITHSTANDING ANY OTHER LAW, AN ELECTED OFFICIAL
9 OR APPOINTED OFFICIAL IN THIS STATE OR ANY POLITICAL
10 SUBDIVISION OF THIS STATE WHO KNOWINGLY VOTES FOR, APPROVES OR
11 DIRECTS PUBLIC MONIES TO PROVIDE BENEFITS, SERVICES OR
12 PAYMENTS TO INDIVIDUALS WHO ARE NOT UNITED STATES CITIZENS OR
13 LAWFUL PERMANENT RESIDENTS MAY BE PERSONALLY LIABLE FOR BOTH
14 OF THE FOLLOWING:

15 1. THE TOTAL AMOUNT OF PUBLIC MONIES ALLOCATED:

16 2. REASONABLE ATTORNEY FEES AND COSTS:

17 B. THE ATTORNEY GENERAL MAY BRING A CIVIL ACTION TO
18 ENFORCE THIS SECTION:

19 C. ANY IMMUNITY OR PRIVILEGE THAT IS AVAILABLE TO
20 PUBLIC OFFICIALS OR APPOINTED OFFICIALS DOES NOT APPLY TO
21 KNOWING VIOLATIONS OF THIS SECTION:

22 D. THIS STATE OR A POLITICAL SUBDIVISION OF THIS STATE
23 MAY NOT PAY OR REIMBURSE ANY JUDGMENT, SETTLEMENT OR LEGAL
24 FEES INCURRED BY AN OFFICIAL WHO VIOLATES THIS SECTION:

25 E. FOR THE PURPOSES OF THIS SECTION, "POLITICAL
26 SUBDIVISION" MEANS A CITY, TOWN OR COUNTY:

27 Sec. 3. Title 41, chapter 1, article 5, Arizona Revised
28 Statutes, is amended by adding section 41-191.14, to read:

29 41-191.14. Fraud; violation; civil penalty

30 A. NOTWITHSTANDING ANY OTHER LAW, A PERSON MAY NOT DO
31 ANY OF THE FOLLOWING:

32 1. KNOWINGLY PRESENT A FALSE OR FRAUDULENT CLAIM FOR
33 PAYMENT OR APPROVAL:

34 2. KNOWINGLY MAKE, USE OR CAUSE AN INDIVIDUAL TO MAKE
35 OR USE A FALSE RECORD OR MATERIAL STATEMENT:

36 3. HAVE POSSESSION, CUSTODY OR CONTROL OF PROPERTY OR
37 MONEY USED BY THIS STATE AND KNOWINGLY DELIVER LESS THAN ALL
38 OF THE PROPERTY OR MONEY:

39 4. KNOWINGLY MAKE OR USE A FALSE RECORD OR STATEMENT
40 THAT IS MATERIAL TO AN OBLIGATION TO PAY OR TRANSMIT MONEY OR
41 PROPERTY TO THIS STATE OR KNOWINGLY CONCEAL, IMPROPERLY AVOID
42 OR DECREASE AN OBLIGATION TO PAY OR TRANSMIT MONEY OR PROPERTY
43 TO THIS STATE:

44 5. KNOWINGLY OBTAIN A LICENSE, PERMIT, CERTIFICATE,
45 REGISTRATION OR OTHER AUTHORIZATION FROM ANY STATE AGENCY OR
46 POLITICAL SUBDIVISION OF THIS STATE BY FRAUD:

1 ~~6. KNOWINGLY OPERATE ANY ACTIVITY OR ENTERPRISE WHILE~~
2 ~~AUTHORIZATION IS OBTAINED OR MAINTAINED BY FRAUD.~~
3 ~~7. KNOWINGLY BENEFIT FROM THE FRAUD OF ANOTHER IN~~
4 ~~CONNECTION WITH ANY PROGRAMS OR BENEFITS OFFERED BY THIS~~
5 ~~STATE.~~
6 ~~B. A PERSON WHO VIOLATES SUBSECTION A OF THIS SECTION~~
7 ~~IS LIABLE FOR ANY OF THE FOLLOWING:~~
8 ~~1. A CIVIL PENALTY OF AT LEAST \$11,000 AND NOT MORE~~
9 ~~THAN \$25,000 FOR EACH VIOLATION.~~
10 ~~2. TRIPLE THE AMOUNT OF DAMAGES SUSTAINED BY THIS~~
11 ~~STATE.~~
12 ~~3. THE COSTS OF ANY CIVIL ACTION, INCLUDING REASONABLE~~
13 ~~ATTORNEY FEES AND INVESTIGATIVE COSTS.~~
14 ~~C. ANY LICENSE, PERMIT, CERTIFICATE, REGISTRATION OR~~
15 ~~OTHER AUTHORIZATION ISSUED BY ANY STATE AGENCY OR POLITICAL~~
16 ~~SUBDIVISION OF THIS STATE SHALL BE REVOKED IF THE ATTORNEY~~
17 ~~GENERAL DETERMINES THAT FRAUD OCCURRED IN:~~
18 ~~1. OBTAINING THE LICENSE, PERMIT, CERTIFICATE,~~
19 ~~REGISTRATION OR OTHER AUTHORIZATION.~~
20 ~~2. THE OPERATION OF THE AUTHORIZED ACTIVITY.~~
21 ~~3. ANY DEALINGS BETWEEN THE LICENSE, PERMIT,~~
22 ~~CERTIFICATE, REGISTRATION OR OTHER AUTHORIZATION HOLDER AND~~
23 ~~THIS STATE OR ANY POLITICAL SUBDIVISION OF THIS STATE.~~
24 ~~D. THE ATTORNEY GENERAL MAY INVESTIGATE AND TAKE~~
25 ~~APPROPRIATE ACTION AS PRESCRIBED IN TITLE 44, CHAPTER 10,~~
26 ~~ARTICLE 7.~~
27 ~~E. A CIVIL ACTION PURSUANT TO THIS SECTION SHALL BE~~
28 ~~BROUGHT WITHIN SIX YEARS AFTER THE DATE THE VIOLATION WAS~~
29 ~~COMMITTED OR WITHIN THREE YEARS AFTER THE DATE ON WHICH FACTS~~
30 ~~MATERIAL TO THE ACTION ARE KNOWN OR REASONABLY SHOULD HAVE~~
31 ~~BEEN KNOWN BY THE ATTORNEY GENERAL.>>~~
32 2. The Secretary of State shall submit this proposition to the
33 voters at the next general election as provided by article IV, part 1,
34 section 1, Constitution of Arizona.

35 Enroll and engross to conform

36 Amend title to conform

KEVIN PAYNE

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